

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 26, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Leong vs. Pure Dermatology 2024-01399612	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED . The motion for final approval shall be heard on December 11, 2026 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.

2	Foss vs. Prenovost, Normandin, Dawe & Rocha, A.P.C. 2025-01488839	Plaintiff's Motion for Approval of Class Settlement Plaintiff's motion for preliminary approval of class action settlement is CONTINUED to September 4, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before August 24, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Are there any other pending actions, whether class or individual, that may be affected by this settlement? 2. Did the parties engage a mediator to assist in settlement negotiations? 3. Please provide 60 days, rather than 45, for objections and opt-outs. 4. Section 64 of the agreement says that written objections must be filed with the Court and served on counsel and the administrator. Please delete this requirement. Written objections need only be mailed to the administrator. The administrator or counsel will then file the objections with the final approval papers. 5. Section 64 also says that class members must file a written objection in order to be heard at the final approval hearing. Please delete this requirement. The Court will entertain oral objections from class members at the final approval hearing regardless of whether written objections were submitted. 6. There are approximately 1,483 class members. How many of these are California subclass members? 7. Has Defendant implemented any corrective measures since the data breach? If so, please provide a declaration for the Court's in camera review describing these corrective measures.

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| | <ol style="list-style-type: none">8. Read together, the definitions of “Released Claims” and “Released Parties” make the release overbroad. For example, the Released Claims include claims that “relate to” the data breach, and the “Released Parties” include Defendant’s “attorneys,” i.e., defense counsel. Suppose that defense counsel, in the course of defending this action, received copies of the class’s protected data in confidence. Further suppose that defense counsel was the victim of a separate data breach, which exposed the class’s protected data a second time. It appears that the class would release any claims arising from this second data breach, as the second breach is “related to” the first, and defense counsel is a released party. Please ensure the release is properly limited to claims arising solely from the data breach at issue, and is further limited only to those parties who might reasonably be expected to face liability.9. The agreement includes a classwide release of unknown claims with a § 1542 waiver. Please delete this. The Court will not approve such a release on a classwide basis. The class release must be limited to claims that were pled in the operative complaint or could be pled based on the facts alleged therein.10. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice.11. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice.12. Because Plaintiff has provided a declaration in support of her requested service payment, he need not provide one at final approval.13. At final approval, the administrator is to provide information regarding the number of persons who opted for credit monitoring and the number of persons who chose each cash option. For those persons who claimed documented losses, the administrator is to provide the high, low, and average estimated payments. For those persons who claimed the alternative cash payment, the administrator is to provide the breakdown between California residents and non-California residents. |
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		<i>As to the Notice:</i> 1. Page 8 of the long-form notice says objectors must file their objections with the Court. As discussed above, it suffices for objections to submit objections to the administrator. 2. The long-form notice should make clear that class members may appear at final approval to object even if they didn't submit a written objection. 3. Does notice need to be given in any languages other than English? 4. If any changes are made to the settlement agreement, please make corresponding changes to the notices. The font size in the actual notices (both short- and long-form) may not be smaller than the font size in the proposed notices provided to the Court.
3	Gates vs. Herbalife Manufacturing LLC 2022-01289409	Plaintiff's Motion for Final Approval The motion for final approval of class action settlement is continued to August 7, 2026 at 9:00 a.m. in Department CX101 for the parties to address the following items of concern. Any supplemental briefing must be filed 10 days prior to the hearing. 1. The administrator's declaration says two class members opted out. The proposed order says no class members opted out. If any class members opted out, they must be identified by name in the proposed order. 2. Please provide Plaintiffs' estimated individual class and PAGA shares. 3. At preliminary approval, the Court ordered counsel to provide billing records for lodestar cross-check purposes. The Falakassa firm claims a lodestar of \$35,162.50 for 48.5 hours at \$725 per hour, but no supporting records are attached to Falakassa's declaration. Please provide billing records for lodestar cross-check purposes.

4	Izaguirre Manzanares vs. Swinerton Builders 2023-01308415	Plaintiff's Motion for Final Approval The Court is inclined to GRANT the motion for final approval of class action settlement contingent on counsel providing Plaintiffs' expected individual settlement shares at the hearing. Assuming everything is in order, the Court intends to award the following distributions: 1. Attorney's fees in the amount of \$195,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$25,000, the maximum permitted by the settlement agreement. 3. Administration costs in the amount of \$16,850, per the administrator's declaration. 4. Enhancements of \$5,000 apiece to Plaintiffs. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$12,000 per the parties' PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before March 30, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary. Please submit a revised proposed order for the Court's signature that conforms to the foregoing.
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5	Pacific Stone Construction, Inc. vs. Rafipoor 2021-01178241	Plaintiff's Motion to Increase Bond Plaintiff Pacific Stone Construction, Inc.’s motion to increase bond is GRANTED. The bonds posted by certain of the PKG Parties are to be increased as follows no later than July 10, 2026: • Santa Brassy, Inc. is to post an increase of \$291,100.11. • Santa Broadway, Inc. is to post an increase of \$283,857.42. • Santa Cerritos, Inc. is to post an increase of \$98,849.32. • Santa LBX, Inc. is to post an increase of \$293,917.81. • Santa Mix, Inc. is to post an increase of \$64,252.05. <u>EVIDENTIARY MATTERS</u> PSC’s unopposed request for judicial notice of various filings in this Court and liquor license documents from the California Department of Alcoholic Beverage Control (ROA 541) is GRANTED. The PKG Parties’ evidentiary objections (ROA 589) to the declaration of Michael Collins (included in ROA 543) are OVERRULED. As to the CCP § 996.010(b) objection, the statute simply requires that a motion to increase the bond be supported by an “affidavit.” The statute says nothing about the required contents of the affidavit, let alone that it must include the specific information the PKG Parties demand in their opposition brief. As to the foundation and hearsay objections, the facts set forth in the moving papers, which Collins verifies in his declaration, are easily gleaned from the documents the Court has already granted judicial notice of. <u>GROUND'S FOR RULING</u> The Court entered judgment in this matter on 08/14/24, with interest accruing at the rate of 10% beginning 10/31/23. (ROA 438.) In a minute order dated 10/25/24, the Court granted the PKG Parties’ motion to reduce the bond, allowing them to post the principal rather than 1.5 times the principal (if the bond were given by an admitted surety) or twice the principal (if the bond were given by anyone else). In granting the motion, the Court noted that while the PKG Parties were having financial issues that prevented a statutorily compliant bond, profit was trending upward. (ROA 478 at p. 2.) Accordingly, the Court ordered the PKG Parties to post bonds totaling
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\$4,175,959.

The PKG Parties appealed the Court’s judgment against them. The Court of Appeal affirmed in an unpublished decision. (*Pacific Stone Construction, Inc. v. Santa Mix, Inc.* (2026) 2026 WL 866345.) Last month, the PKG Parties petitioned the California Supreme Court for review. (*Pacific Stone Construction, Inc. v. Santa Mix, Inc.*, S296584.) All the while, interest has continued to accrue. As set forth in a table at page 5 of the moving papers, the balance as of filing of this motion was \$5,207,935.72.

CCP § 996.010(a) provides: “If a bond is given in an action or proceeding, the court may determine that the bond is or has from any cause become insufficient because the sureties are insufficient or because the amount of the bond is insufficient.” Upon finding the bond insufficient, the court “shall order that a sufficient new, additional, or supplemental bond be given within a reasonable time not less than five days.” (CCP § 996.010(c).) Section 996.010 “reflects a common sense view that the sufficiency of the undertaking should be assessed in light of those sums which it may be required to satisfy, not in light of the formula for initially setting the amount of the undertaking.” (*Grant v. Superior Court* (1990) 225 Cal.App.3d 929, 938.) Accrued interest is a “proper factor[] for the trial court to consider in ruling on” a § 996.010 motion. (*Ibid.*)

The PKG Parties now owe over a million dollars more than the amount secured by the bonds they posted. Exercising its discretion, the Court finds the bonds insufficient. The PKG Parties are ordered to post supplemental bonds in the amounts noted above, which will result in a total of \$5,207,935.72 in bonds. In addition, the Court notes that the PKG Parties have valid, active liquor licenses, suggesting their business continues on an upward trend.

Apart from their argument about the content of the Collins Declaration, rejected above, the PKG Parties offer four reasons the motion should be denied. The Court disagrees on all counts.

First, they contend *Grant* is factually inapposite because the court in that case originally set the bond at the full statutory amount, and the judgment creditor later asked the court to exercise its discretion to increase the bond over the full statutory amount. Here, the PKG Parties argue, the Court has already exercised its discretion to set a bond different from the statutory amount. This argument might be persuasive if PSC argued an increase was

		<i>required by Grant</i>, but PSC simply asks the Court to exercise its discretion anew. Nothing in <i>Grant</i> prevents such an exercise of discretion. Second, they point to the following language in <i>Grant</i>: “Likewise, we do not mean to imply that, just because sometime in the future the bond will become insufficient due to increasing interest, the bond can be increased before it reasonably is necessary to assure the judgment creditor of the security to which he or she is entitled.” (<i>Grant, supra</i>, 225 Cal.App.3d at p. 939.) This language concerns a scenario not before the Court. With already accrued interest, the prior bond is indisputably insufficient to secure the judgment. This is not a bond that will “become insufficient” at “sometime in the future.” The bond is insufficient now. Third, the PKG Parties argue the Court has already accounted for post-judgment interest by excluding it from the original bond because they couldn’t afford to cover both principal and interest. This argument fails to consider the evidence before the Court in October 2024, which showed that while the PKG Parties were unable to afford both principal and interest at that time, profits were “either stable or trending upwards.” (ROA 456 at p. 5.) The Court took the PKG Parties’ evidence and argument at face value. Two years of stable or upward-trending profits have passed, and the evidence reflects the PKG Parties remain going concerns, in that they have valid liquor licenses. Nothing in the record indicates the PKG Parties’ own characterization of future business expectations was incorrect, so it stands to reason that what they can afford today is different from what they could afford nearly two years ago. Fourth, they argue PSC has failed to show “a real, substantial possibility, not just speculation,” that the bond is insufficient. (<i>Grant, supra</i>, 225 Cal.App.3d at p. 938.) Again, the bond is <i>indisputably</i> insufficient to secure the judgment. Nearly two years of interest have accrued. The Court is permitted to consider this accrual under <i>Grant</i>, and it is also permitted to consider two years of what the PKG Parties themselves called stable and upward-trending profits. For all of these reasons, in the exercise of its discretion, the Court concludes the bonds should be increased as set forth above.
6	WRW Properties, LLC vs. JVS Development LLC	Defendant's Motion for Sanctions ARC 1 Retail, LLC appealed the Court’s judgment in favor of Orange Coast Title Company of Southern California. The appellate court affirmed in an

2017-00939294

unpublished opinion. (*ARC Retail 1, LLC v. Orange Coast Title Company of Southern California* (November 13, 2025, G06283) (hereafter “Slip Op.”).) OCTC moved for sanctions on appeal. The appellate court denied the motion insofar as OCTC argued the appeal was frivolous, but granted the motion insofar as OCTC argued ARC violated the Rules of Court. The appellate court remanded to this Court with instructions “to determine: (1) whether sanctions should be awarded against ARC, its appellate counsel, or both; and (2) the appropriate amount of an award of sanctions to compensate Orange Coast for the attorney fees and other expenses it incurred on appeal, which award will deter ARC and/or its appellate counsel from violating the Rules of Court in the future.” (Slip Op. at p. 21.)

OCTC seeks \$89,363.50 in sanctions against ARC and its counsel, Gerard Fox Law, P.C., jointly and severally. This request is GRANTED IN PART. The Court awards OCTC \$10,000 in sanctions against Gerard Fox Law, P.C. No sanctions are awarded against ARC. The Court finds this amount sufficient to deter future violations of the Rules of Court.

Pursuant to Bus. & Prof. Code § 6068.7(a)(3), the clerk is ordered to transmit a copy of this order to the State Bar. Pursuant to Bus. & Prof. Code § 6068.7(o)(3), Gerard Fox Law, P.C. is ordered to do the same, and to file proof of service of this order on the State Bar.

Finally, ARC’s request to strike or tax costs, made in its opposition brief, is DENIED.

GROUND FOR RULING

I. Against Whom Sanctions Should Be Awarded

The two questions presented on remand are (1) whether sanctions should be awarded against ARC, its counsel, or both, and (2) the amount of sanctions to be awarded.

The Court finds sanctions should be awarded against Gerard Fox Law, P.C. alone. The sanctionable misconduct is violation of the Rules of Court regarding the content of appellate briefs. Represented parties entrust compliance with those rules to their retained counsel. In contrast, when violations of the Rules of Court are paired with a frivolous appeal, sanctions against both client and counsel are appropriate. (Compare *Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 884-886 (sanctions against counsel for violations of Rules of Court) with *Evans v. Centerstone Development Co.* (2005) 134 Cal.App.4th 151, 165-170 (sanctions against client and counsel for frivolous appeal and violations of Rules of Court).)

OCTC argues sanctions against ARC are appropriate because joint and several

sanctions are routinely imposed “for a frivolous appeal or unreasonable rule violations.” (Mot. at p. 4.) The case it cites for this proposition, *Pierotti v. Torian* (2000) 81 Cal.App.4th 17, involved a frivolous appeal *and* unreasonable rule violations, like *Evans, supra*. OCTC also argues ARC has a “demonstrated history of disregarding court rules and procedures.” (Mot. at p. 5.) Apart from the misconduct noted by the appellate court, it cites ARC’s prosecuting this action while not in good standing with the Secretary of State and its attempt to file an untimely expert report. The former issue was resolved when ARC restored its good standing status, and the latter was sufficiently addressed by the Court’s refusal to consider the expert report. In short, sanctions against counsel alone are appropriate.

II. Amount of Award

As to the amount of the award, OCTC seeks \$89,363.50, representing attorney’s fees and expenses incurred on appeal and in preparing this motion. The Court will not permit recovery of this amount for several reasons.

First, the claimed lodestar is not credible. When OCTC moved for sanctions on appeal, it claimed a total of \$26,542.50 in fees for its responsive brief, preparation of the sanctions motion, oral argument preparation, and appearance at oral argument. (OCTC RJN, Ex. E.) Here, OCTC seeks over \$60,000 *more*. OCTC offers no explanation for why it told the appellate court it sought about \$26,000 “in connection with ARC’s frivolous appeal” (OCTC RJN, Ex. E, at ¶ 9) but now claims about \$85,000 “in attorney’s fees in connection with the appeal.” (Mot. at p. 6.) If OCTC intends to seek its fees on appeal, it will be limited to what it claimed on appeal, plus fees incurred for the present papers.

Second, awarding all fees incurred on appeal would effectively grant OCTC relief the appellate court denied. Such an award might be justified if the appeal were frivolous, but the appellate court expressly declined to find the appeal frivolous.

Third, and relatedly, an award of all fees incurred on appeal would be disproportionate to the misconduct at issue. The appellate court ordered sanctions for (1) six citations to unpublished cases, (2) an unspecified number of inaccurate quotations from published cases, and (3) numerous improper citations to the appellate record. (Slip Op. at p. 20.) For comparison, in the recent case of *Noland v. Land of the Free, L.P.* (2025) 114

		Cal.App.5th 426, “nearly all of the quotations in plaintiff’s opening brief, and many of the quotations in plaintiff’s reply brief,” were “fabricated” by generative artificial intelligence. (<i>Id.</i>, at p. 435.) The appellate court awarded \$10,000 in sanctions. It noted that larger sanctions might be appropriate, but because counsel “expressed remorse for his actions,” \$10,000 sufficed. Based on the appellate court’s opinion in this case, it appears counsel’s misconduct was less pervasive than in <i>Noland</i>, where nearly all quotations were fabricated. This might support a lower sanction than the \$10,000 awarded there. On the other hand, ARC and its counsel’s opposition brief is anything but remorseful. It describes the appellate court’s opinion as “simply an embarrassment to those of us who defend the California court system,” accuses the appellate court of being “disingenuous” and “intellectually...insulting,” questions whether the appellate court ever read two cases cited in its opinion, and characterizes the opinion as containing “a gross misstatement of fact and grossly improper assumption.” (See generally <i>Opp.</i>) Moreover, the opposition asks this Court to ignore the appellate court’s instructions on remand and <i>not</i> order sanctions. This might merit a higher sanction than the amount awarded in <i>Noland</i>. Considering the foregoing, as well as the full record in this matter, the Court concludes in its discretion that \$10,000 is a sufficient sanction to deter counsel from violating the Rules of Court in the future. Said sanction is payable to OCTC, through its counsel, by July 26, 2026. III. <u>Request to Strike Costs</u> In the last sentence of its opposition, ARC asks the Court to “strike the disallowed costs from the Memorandum of Costs.” No motion to strike or tax costs has been filed, so this request is denied.
7	Arteaga vs. Penske Logistics, LLC. 2025-01501859	Defendant's Motion to Stay Defendant Penske Logistics, LLC’s motion to stay proceedings is GRANTED. This case is stayed pending resolution of <i>Nelson v. Penske Logistics, LLC</i>, San Joaquin County Super. Ct. No. STK-CV-UOE-2024-0001484. A status conference will take place on March 2, 2027 at 8:30 a.m. The parties shall file a joint status report by February 23, 2027. <u>GROUND FOR RULING</u> I. <u>Factual Background</u>

In February 2024, Terry Nelson filed a PAGA-only lawsuit against Defendant in San Joaquin County Superior Court. (Moos Decl. (ROA 49) Ex. B.) Nelson worked in one of Defendant’s warehouses (*id.*, ¶ 17), but alleged that the wage-and-hour violations he suffered “were not unique to him but rather were companywide policies and practices at all distribution facilities in the State of California and were suffered by *all non-exempt employees*.” (*id.*, ¶ 57 (emphasis added).) His original complaint identified the following predicate Labor Code violations: (1) sick leave rate miscalculation, (2) overtime rate miscalculation, (3) vacation pay rate miscalculation, (4) meal break premium rate miscalculation, (5) noncompliant meal breaks, (6) noncompliant rest breaks, (7) failure to pay for all hours worked (regular and overtime wages), (8) reimbursement, (9) wage statements, (10) waiting time, and (11) maintenance of an illegal quota at a distribution center. Nelson’s PAGA-only suit followed an earlier class action he filed in federal court. (Moos Decl. Exs. C-D.)

Plaintiffs filed the present PAGA-only lawsuit in August 2025. They are drivers based at Defendant’s Ontario facility. (Compl., ¶ 2.) They seek to represent a group of aggrieved employees limited to Defendant’s drivers. (*Id.*, ¶ 1.) Their complaint identifies the following predicate Labor Code violations: (1) failure to pay for all hours worked, (2) overtime, (3) meal breaks, (4) rest breaks, (5) reimbursement, and (6) wage statements.

In April 2026, Nelson filed an amended complaint in his state court action that incorporates the class allegations from his federal court action and adds factual allegations that cover the theories of liability Plaintiffs advance in this case. (Moos Decl. Ex. E.) Defendants represent this complaint was filed as part of a global settlement of Nelson’s two actions, but they submit no admissible evidence of such a settlement, such as a declaration from counsel stating that a settlement has been reached. For present purposes, however, it suffices to state that the FAC in Nelson’s case appears to have been crafted, at least in part, to fully subsume Plaintiffs’ theories of liability here.

II. Standard of Review

Defendant moves to stay this case under the doctrine of exclusive concurrent jurisdiction. “Under this doctrine, when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others.” (*Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245, 255.) “Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction

does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions. [Citations.] If the court exercising original jurisdiction has the power to bring before it all the necessary parties, the fact that the parties in the second action are not identical does not preclude application of the rule. Moreover, the remedies sought in the separate actions need not be precisely the same so long as the court exercising original jurisdiction has the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788.)

III. Discussion

Nelson’s PAGA action—now a class/PAGA action—was filed before this case. It seeks civil penalties for Labor Code violations affecting all of Defendant’s non-exempt employees. The original complaint includes every section of the Labor Code serving as a predicate violation in this case. Finally, the San Joaquin County Superior Court has the power to litigate all issues and grant all relief to which any party in either case might be entitled. The doctrine of exclusive concurrent jurisdiction therefore applies.

Plaintiffs raise several counterarguments, none of which the Court finds convincing. First, they contend Nelson, a warehouse employee, is an inadequate representative of drivers because he lacks the knowledge and incentive necessary to prosecute driver-related claims. “[C]lass action requirements,” such as adequacy of representation, “developed in large part from California courts’ assertion of their inherent *equitable* powers In contrast, a PAGA claim is a pure *statutory* claim arising under California law.” (*Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, 614 (emphasis original).) Adequacy of representation is mentioned nowhere in the PAGA statute, and there is “little reason to presume the Legislature would intend” an “extra-statutory” requirement. (*Id.*, at p. 613 (discussing extra-statutory manageability requirement).) Plaintiff cites *Estrada* as endorsing an adequacy requirement, but the only mentions of adequacy in *Estrada* is a discussion of class action requirements in contrast to PAGA requirements. (*Id.*, at p. 612.)

Second, Plaintiffs contend Nelson’s driver-related allegations were added only after this case was on file. Perhaps, but in the Court’s experience, this is a common practice in overlapping PAGA actions. In any event, to the extent a court should view Nelson’s amendments skeptically, it is the San Joaquin County Superior Court, which is the court hearing Nelson’s case.

Third, while Plaintiffs admit the predicate Labor Code sections overlap, they contend the factual underpinnings of their claims differ meaningfully from Nelson's original complaint. This may be true, but civil penalties are awarded for statutory violations, not factual theories. If an employee suffers a rest break violation in a pay period, a single civil penalty may be assessed, regardless of how many different ways the rest break statute is violated.

Fourth, Plaintiffs argue staying the case would undermine the purpose of PAGA by allowing a warehouse employee to settle driver-related PAGA claims that were only recently added at a substantial discount. Again, Nelson has always purported to represent all non-exempt employees, and he has always identified each of Plaintiff's predicate Labor Code violations as his own predicate Labor Code violations. Furthermore, in the Court's experience, employers facing overlapping PAGA suits will often negotiate a settlement with a single plaintiff that has the effect of resolving all outstanding claims.

Fifth, Plaintiffs argue a settlement in Nelson's action will have no preclusive effect on their individual wage-and-hour claims here. This argument is misplaced insofar as Plaintiffs haven't brought any individual wage-and-hour claims in this PAGA-only action. To the extent Plaintiffs intend to seek leave to amend their complaint, no such motion is on file at this time. In any event, Nelson's action as currently pled includes class claims, and the Court will not speculate on the effect the settlement of class claims might have on Plaintiffs' potential individual claims.

Finally, Plaintiffs offer several alternatives to a stay:

- They ask the Court to coordinate this case with Nelson's. If Plaintiffs want the cases to be coordinated, they must follow the statutory procedure for doing so. (CCP § 404.)
- A limited stay of certain claims, with discovery allowed on driver-specific issues. Again, all non-exempt employees, including drivers, have always been part of Nelson's case, as have the Labor Code sections Plaintiffs' claims are based upon.
- Conditioning a stay on Plaintiffs having the opportunity to object to the settlement of Nelson's case, both in San Joaquin County Superior Court and in this Court. This Court has no authority to require the

		San Joaquin County Superior Court to consider any objections filed by Plaintiffs, nor does this Court have the authority to rule on the propriety of Nelson’s settlement. For these reasons, the motion for a stay pending resolution of Nelson’s case is granted.
8	Abdelghany vs. Southern California Edison 2021-01195715	Defendant's Motion to Dismiss Defendants Southern California Edison Company, Edison International, and T-Mobile USA, Inc. move to dismiss the claims of Plaintiffs Alicia Garcia, Brenda Martinez, Mauricio Valencia, Dehzad Derakhshani, Kobra Vaziri, Mona Marashi, Nazanin Marashi, and Peyda Marashi (“Non-Responsive Plaintiffs”). Defendants’ unopposed motion is GRANTED. <u>GROUND'S FOR RULING</u> I. <u>Factual Background</u> The Non-Responsive Plaintiffs are several of the numerous plaintiffs who filed suit against Defendants for claims arising from the Silverado Fire. All plaintiffs were represented by the Singleton firm. In a minute order dated September 2, 2022 (ROA 150), Judge Sherman granted the Singleton firm’s motion to be relieved as counsel for Dehzad Derakhshani, Kobra Vaziri, Mona Marashi, Nazanin Marashi, and Peyda Marashi. In a second minute order dated February 10, 2023 (ROA 188), Judge Sherman granted the Singleton firm’s motion to be relieved as counsel for Alicia Garcia, Brenda Martinez, and Mauricio Valencia. The Non-Responsive Plaintiffs haven’t participated in discovery or motion practice since their counsel withdrew. (Greer Decl. (ROA 885) ¶ 7.) Nor did the Non-Responsive Plaintiffs participate in global settlement discussions that resulted in most of the other plaintiffs’ claims being resolved. (<i>Ibid.</i>) On March 9, 2026, the Court entered a stipulated supplemental case management order requiring the Non-Responsive Plaintiffs to file fact sheets regarding claimed damages within 30 days. (ROA 880.) Counsel for Edison served the order, including the fact sheet, on the Non-Responsive Plaintiffs by overnight delivery. (ROA 883.) As of April 28, 2026—over 30 days later—the Non-Responsive Plaintiffs hadn’t served completed fact sheets. (Greer

		Decl. ¶ 9.) II. <u>Discussion</u> “The Court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (CCP § 583.410.) The failure to bring an action to trial within two years of filing is grounds for discretionary dismissal. (CRC 3.1340(a).) The papers supporting a motion to dismiss under § 583.410 must be filed and served at least 45 days prior to the hearing. (CRC 3.1342(a).) As discussed above, the Non-Responsive Plaintiffs haven’t participated in this case since their counsel withdrew, three to four years ago. Defendants served the moving papers on April 28, 2026, more than 45 days before the scheduled hearing. The Non-Responsive Plaintiffs haven’t filed an opposition to the motion. “The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion [to dismiss] is meritorious.” (CRC 3.1342(b).) For these reasons, the motion to dismiss is granted.
9	Quiros vs. Baby Brezza Enterprises LLC, a New York limited liability company, 2026-01539449	Plaintiff's Motion to Seal Plaintiff Eric Quiros’s motion to seal unredacted copies of (1) his own declaration and (2) his counsel’s declaration is DENIED. The clerk is ordered to publicly file the unredacted copies of these documents which are currently lodged with the Court. <u>GROUND FOR RULING</u> This is a consumer class action. Plaintiff and Defendant Baby Brezza Enterprises, LLC have agreed to settle the case on an individual basis, and Plaintiff has requested dismissal of his class claims without prejudice. CRC 3.770(a) requires that such a request be supported by a declaration that states whether consideration has been offered for the dismissal and describes that consideration in detail. Both Plaintiff’s declaration and his counsel’s declaration state the amount of his individual settlement. This amount is redacted from the publicly filed versions of the declarations. Plaintiff moves to permanently seal the lodged, unredacted versions. A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record;

		3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The sole overriding interest identified by Plaintiff is the parties’ agreement to keep the individual settlement amount confidential. But “mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 36.) Rather, the agreement must be coupled with “a specific showing of serious injury.” (<i>Id.</i>, at p. 35.) Here, Plaintiff identifies no injury at all in his papers, let alone a specific, serious one. Because Plaintiff has not demonstrated the existence of an overriding interest that overcomes the right of public access to the record, the motion to seal is denied.
11	Tiley vs. Mercury General Corp. 2025-01521888	Defendant's Demurrer to Amended Complaint Defendant Mercury General Corp.’s demurrer to the first amended complaint (FAC) of Plaintiff Catherine Tiley is OVERRULED. Mercury shall file its answer by July 13, 2026. I. <u>Brief Background</u> This is an age discrimination lawsuit brought on behalf of a putative class. As alleged in the FAC, Tiley is a 65-year-old Facebook user interested in exploring new insurance policies and opportunities. She asserts that Facebook collects detailed biographical information on its users, including their ages. She alleges that Facebook’s advertising platform allows its advertising clients, such as Mercury, to use this biographical information to target users, ensuring that only the potential customers the advertiser wishes to target see an ad. She alleges that Mercury offered its ads only to persons between the age of 25 and 54, which excluded older customers like her. She claims that her age-based non-receipt of Mercury’s advertising denied her the chance to learn about the insurance products Mercury offered. Finally, she alleges that Facebook has discriminated on the basis of age, and Mercury has aided and abetted Facebook. Based on these allegations, she brings claims for age discrimination under the Unruh Act

(Civ. Code § 51) and under Civ. Code § 51.5.

II. Discussion

Mercury demurs to both causes of action. It advances three arguments: Tiley lacks standing, Tiley’s claims fail on the merits insofar as they are based on Mercury’s direct liability, and Tiley’s claims fail on the merits insofar as they are based on aiding and abetting.

The same analysis applies to both the Unruh Act and § 51.5, so there is no need for the Court to evaluate them separately. (See *Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 920 fn. 5.)

A. Standing

“In light of its broad preventive and remedial purposes, courts have recognized that ‘[s]tanding under the Unruh Civil Rights Act is broad.’” (*White v. Square, Inc.* (2019) 7 Cal.5th 1019, 1025.) “[O]nly plaintiffs who have transacted with a defendant and have been subject to discrimination have standing under the Unruh Civil Rights Act.” (*Liapes, supra*, 95 Cal.App.5th at pp. 920-921.) “[M]ere awareness of a business’s discriminatory policy or practice is not enough for standing under the Act.” (*White, supra*, 7 Cal.5th at p. 1023.)

White was the first major case to consider how Unruh Act standing applies in the online context, as opposed to the brick-and-mortar context. A bankruptcy attorney alleged that Square, an online payment processor, discriminated against bankruptcy attorneys because its terms of service provided that Square couldn’t be used by bankruptcy attorneys. The attorney formed a specific intent to sign up for and use Square’s services, visited Square’s website, read the terms of service, and declined to click “continue.” The trial court found the attorney lacked Unruh Act standing because he hadn’t attempted to transact business with Square.

The California Supreme Court reversed. Analogizing to brick-and-mortar stores, it explained that Square’s website was the equivalent of an online storefront. As explained by the Supreme Court, if a Black person walked up to a physical storefront intending to purchase furniture, saw a sign that said

“We sell on credit (Black people must pay cash),” and walked away, that person would have standing to sue under the Unruh Act even though he or she hadn’t endured the hardship of actually entering the store and being denied credit. (*Id.*, at pp. 1030-1031.) Accordingly, “an individual bringing an Unruh Civil Rights Act claim against an online business must allege, for purposes of standing, that he or she visited the business’s website, encountered discriminatory terms, and intended to make use of the business’s services.” (*Id.*, at p. 1032.)

Here, Tiley doesn’t allege she ever visited Mercury’s website. Rather, she alleges the nature and extent of Mercury’s presence on Facebook means Facebook is also an online storefront for Mercury. The FAC contains detailed allegations about Mercury’s use of Facebook. (FAC ¶¶ 14-18, 74-77.) Mercury rejects this argument. It contends the alleged non-receipt of advertisements occurred on Plaintiff’s Facebook feed, well before any Mercury access point, and that descriptions of Mercury’s Facebook presence as an online storefront are mere legal conclusions.

Tiley has the better argument, at least for purposes of demurrer. Whether Mercury’s Facebook presence is so extensive as to constitute an online storefront is a factual question about the extent of Mercury’s Facebook presence. Assuming all facts alleged in the FAC are true, it doesn’t follow that *as a matter of law*, Mercury’s Facebook presence isn’t an online storefront.

Mercury apparently believes *White* holds that *only* a company website is an online storefront. The Court is skeptical of this argument. Consider a company that sells products online, but only through Amazon’s website. Why wouldn’t the company’s Amazon store be its online storefront, even though the website belongs to Amazon?

In short, Tiley has adequately pled that Facebook is an online storefront for Mercury. Under *White*, she must also plead that (1) she intended to use Mercury’s services and (2) encountered discrimination in attempting to use those services. The first element doesn’t appear to be disputed. Mercury strenuously disputes the second. It argues Tiley simply alleges that Mercury used Facebook’s advertising tools to select audience parameters, after which Facebook delivered advertisements through its platform. Perhaps these allegations are enough to state a claim against Facebook, Mercury argues, but they do not “establish that Tiley presented to Mercury, transacted with Mercury, or was denied any Mercury provided service, advantage, or privilege.” (Reply at p. 8.)

		<i>Liapes</i> is instructive. Mercury frames <i>Liapes</i> as a case about Facebook’s direct liability. This is partially true, but the plaintiff in <i>Liapes</i> also alleged that Facebook’s publishing of age-targeted insurance advertisements on its platform meant Facebook was liable for aiding and abetting the insurers’ Unruh Act violations. A person is liable for aiding and abetting another person’s Unruh Act violation if the first person knows the second person’s conduct violates the Unruh Act and gives substantial assistance to the second person in that conduct. (<i>Liapes, supra</i>, 95 Cal.App.5th at p. 926.) The appellate court held the plaintiff had pled an aiding-and-abetting claim against Facebook: “The complaint satisfied these elements. It adequately alleged Facebook knew insurance advertisers intentionally targeted its ads based on users’ ages and gender—as explained above, a violation of the Unruh Civil Rights Act.” (<i>Ibid.</i> (emphasis added).) The insurers’ alleged violation of the Unruh Act was “intentionally target[ing] . . . ads based on users’ ages and gender.” Logically, for this to be a potential violation of the Unruh Act by the insurers, their advertisements must be a service, advantage, or privilege of the insurers. As a result, Tiley has adequately pled that she was denied a Mercury-provided service, advantage or privilege. B. <u>Merits</u> Mercury argues Tiley’s direct liability allegations fail because she has failed to allege denial of a Mercury-provided service, advantage, or privilege. For the reasons discussed above, Tiley has adequately alleged such a denial. The direct liability allegations are sufficient to survive demurrer. Because Tiley’s claims are based on both direct liability and aiding-and-abetting liability, and because the direct liability allegations survive demurrer, there is no need to consider the aiding-and-abetting allegations. A demurrer does not lie to a portion of a cause of action. (See <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682.)
12	Hagey vs. Solar Service Experts, LLC d/b/a Enery Service Experts	Plaintiff's Motion for Final Approval and Motion for Attorney Fees Plaintiff’s motion for final approval of class action settlement is GRANTED. The Court awards the following distributions from the gross settlement amount:

	2021-01202580	6. Attorney's fees and litigation costs in the amount of \$150,000. 7. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 8. The remainder is to be distributed to individual class members per the terms of the settlement agreement. As discussed in the moving papers, settlement administration costs are to be paid by Defendant separately and apart from the gross settlement amount.
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